

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, February 28, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29274 against Police Officer Alexander Caballero, Tax Registry No. 962284. The case was conferenced on February 22, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B) forfeiture of Six (6) vacation days. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite, Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29274
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, CABALLERY	FIRST ALEXANDER	M.I.	COMMAND 70 DET SQUAD
SHIELD NO. 21951	TAX REGISTRY NO. 962284	SOCIAL SECURITY NO.		DATE APPOINTED 10/11/2016
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Alexander CABALLERY, on or about June 8, 2022, at approximately 1230, while assigned to 070 PCT and on duty, in the vicinity of Lott Street and Beverly Road, Kings County, abused his/her authority as a member of the New York City Police Department, in that PO CABALLERY detained § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 6.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Alexander CABALLERY, on or about June 8, 2022, at approximately 1230, while assigned to 070 PCT and on duty, in the vicinity of Lott Street and Beverly Road, Kings County, abused his/her authority as a member of the New York City Police Department, in that PO CABALLERY searched the vehicle in which § 87(2)(b) was an occupant without sufficient legal authority.	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

3/25/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caballero
POLICE COMMISSIONER

4/12/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner March 21, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29274 against Police Officer Alexander Caballero, Tax No. 962284, with the recommendation that the Charges and Specifications against Police Officer Caballero be dismissed and that Police Officer Caballero receive a Schedule "B" Command Discipline and forfeit six (6) vacation days. Former Deputy Commissioner, Trials Jeff Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

APR 12 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER